

Act on Day-Care, After-School and Club Facilities, etc. for Children and Young People (Day-Care Facilities Act)

ACT no. 501 of 6 June 2007

BE IT KNOWN that the Folketing has enacted and We Margrethe the Second, by the Grace of God, Queen of Denmark, have given Our Royal Assent to the following act:

Title I

Introduction

Part 1

Purpose, scope, responsibility, supervision, etc.

Purpose

1. The purpose of this Act is to

- (i) promote the welfare, development and learning of children and young people through day-care, after-school and club facilities and other socio-pedagogic after-school facilities;
- (ii) provide families with flexibility and options as regards various types of facilities and subsidies so that to the extent possible families can plan family and working life according to their needs and wishes;
- (iii) prevent the vicious circle of deprivation and exclusion by making pedagogic measures an integral part of both the local authority's overall, general offer to children and young people and the preventive and supportive activities aimed at children and young people requiring special support, including children and young people with diminished mental or physical capacity; and
- (iv) create coherence and continuity between facilities and make transitions between facilities coherent and age-appropriately challenging for the children.

Scope, etc.

2.-(1) This Act comprises day-care, after-school and club facilities and other socio-pedagogic after-school facilities with a learning, social and care objective.

(2). Parents lawfully residing in Denmark are entitled to services under this Act.

(3). Parents may dispose of only one place per child in facilities under this Act; but see section 80(4).

Objectives, framework and responsibilities for and supervision of day-care,

after-school and club facilities and other socio-pedagogic after-school facilities

3.-(1) The local council is responsible for day-care, after-school and club facilities and other socio-pedagogic after-school facilities.

(2). The local council shall establish and publish local authority objectives and framework for day-care, after-school and club facilities, etc. in the local authority.

(3). The local council shall ensure that day-care, after-school and club facilities, etc. are instrumental in implementing the local authority's coherent child policy, cf. section 19(2) of the Act on Social Services, and that the facilities assist in

(i) creating mutual coherence between facilities under this Act and other relevant acts and

(ii) providing special support to children and young people under the age of 18 requiring such support.

(4). The local council shall publish an overview of day-care, after-school and club facilities, etc. in the local authority and rates of subsidies for private day-care and care for own children.

4.-(1) The local council shall provide the necessary number of places in day-care, after-school and club facilities and other socio-pedagogic after-school facilities.

(2). The local council shall ensure that children and young people under the age of 18 requiring support in a day-care, after-school or club facility, etc. to thrive and develop are offered such support in the facility.

(3). Day-care, after-school and club facilities for children and young people under the age of 18, who due to substantially and permanently diminished physical or mental capacity require special support, treatment, etc. that cannot be covered by using one of the facilities under this Act, shall be established in pursuance of the provisions of the Act on Social Services.

5.-(1) The local council shall supervise the activities of the facilities under this Act and the manner in which tasks are performed, including that the objectives and framework established under section 3 are observed.

(2). The local council shall lay down and publish the framework of such supervision.

6.-(1) The manager of the individual local-authority day-care, after-school or club facility, etc. shall be in charge of the pedagogic and administrative management of the facility and accountable to the local council in this respect.

(2). The manager of the individual independent day-care, after-school or club facility, etc. shall be in charge of the pedagogic and administrative management of the facility and accountable to the board of the facility in this

respect.

Title II

Day-care facilities for children up to school age

Part 2

Purpose, pedagogical curriculum, language assessment, child environmental impact assessment, etc.

Purpose of day-care facilities

7.-(1) Children in day-care facilities shall have a physical, mental and aesthetical child environment that promotes their welfare, health, development and learning.

(2). Day-care facilities shall cooperate with parents to provide care for the children and support the comprehensive development and self-esteem of the individual child and contribute to the proper and safe upbringing of children.

(3). Day-care facilities shall promote children's learning and development of competencies through experiences, play and educationally planned activities that give children room for contemplation, exploration and experience.

(4). Day-care facilities shall give children co-determination, co-responsibility and an understanding of democracy. As part of this objective, day-care facilities shall contribute to developing children's independence, skills in entering into committing social relations and solidarity with and integration in the Danish society.

(5). In cooperation with parents, day-care facilities shall ensure a good transition to school by developing and supporting basic competencies and the desire to learn. In cooperation with schools, day-care facilities shall create a cohesive transition to school and after-school facilities.

Pedagogical curriculum

8.-(1) All day-care facilities shall prepare a written pedagogical curriculum for children aged 0-2 years and children aged 3 to school age. The pedagogical curriculum shall provide room for play, learning and development of children in day-care facilities. On preparation of the pedagogical curriculum, the composition of the group of children shall be taken into consideration.

(2). The pedagogical curriculum shall describe the objective of the day-care facility in respect of children's learning within the following themes:

- 1) Comprehensive personal development.
- 2) Social competencies.

- 3) Language development.
- 4) Body and motion.
- 5) Nature and natural phenomena.
- 6) Cultural values and artistic expressions.

(3). The pedagogical curriculum shall describe relevant pedagogical approaches and activities applied to reach the objectives and how to evaluate the curriculum.

(4). The pedagogical curriculum shall specify relevant pedagogical approaches, activities and any objectives set and initiated in respect of children with special needs.

(5). For childminding, the pedagogical curriculum is prepared for all childminding homes or districts under the local-authority childminding scheme.

9.-(1) The manager of the day-care facility is responsible for preparing and publishing the pedagogical curriculum.

(2). The manager of the day-care facility is responsible for having the pedagogical curriculum evaluated annually. In this respect, the manager is responsible for documenting whether the pedagogic approaches and activities chosen meet the objectives outlined within the themes in section 8 (2) and (3). The manager shall specify how the day-care facility intends to follow-up the results.

(3). The manager of the day-care facility shall include the parent board in the preparation, evaluation and follow-up of the pedagogical curriculum.

10.-(1) The local council shall approve the pedagogic curriculum.

(2). The local council shall discuss the evaluations on an annual basis, cf. section 9(2), and shall on the basis of the evaluations decide whether they give rise to further action from the local council.

Language assessment and language stimulation

11.-(1) The local council is responsible for ensuring that all children aged three in the local authority are offered a language assessment test and shall offer language supporting activities and other assistance as required, cf. section 4(2) hereof and sections 4 and 4a of the Act on Primary and Secondary Education.

(2). In connection with the language assessment service to all families with children aged three, the local council shall make families that do not use day-care facilities aware of the possibility of having a place in a day-care facility.

(3). The local council is responsible for ensuring that the child's parents are

involved in the language assessments and the work of the day-care facility to support children's language development and that the parents receive counselling in supporting their children's language development.

(4). The local council shall prepare and publish a plan for the local authority's objectives and framework for language assessments and language-supporting educational activities.

Child environmental impact assessment

12.-(1) All day-care facilities shall prepare a written child environmental impact assessment which contains a mapping of the facility's physical, mental and aesthetic child environment. The child environmental impact assessment shall describe any child environmental issues and include an action plan.

(2). The child environment shall be assessed from a child's perspective and the children's experience of the child environment shall be included according to the children's age and maturity.

(3). The manager of the day-care facility shall involve the parent board in the child environmental impact assessment work.

(4). For childminding, the assessment is prepared for all childminding homes or districts under the local-authority childminding scheme.

13.-(1) The manager of the day-care facility is responsible for preparing and publishing the child environmental impact assessment.

(2). The manager of the day-care facility is responsible for having the child environmental impact assessment revised at least every three years and whenever there are changes affecting the child environment.

(3). Day-care facilities may seek advice regarding child environment from the Danish Centre of Educational Environment; cf. the Act on the Educational Environment of Pupils and Students.

Parent board

14.-(1) Parents with children in a local-authority or independent day-care centre or in local-authority childminding shall have access to establish a parent board in the local-authority childminding or the individual day-care centre with a majority of elected parents; but see section 24a of the Act on Primary and Secondary Education. Day-care facility employees shall be represented on the parent board. The local council may decide that employee representatives on parent boards in local-authority day-care centres and local-authority childminding shall have a right to vote.

(2). Subsection (1) above shall not apply to independent day-care centres, in which the board consists of a majority of elected parents.

(3). In respect of private day-care centres, the local council shall in connection with approval under section 20 ensure that parents are given influence corresponding to the parental influence in independent day-care

centres.

(4). In respect of private childminding, the local council shall in connection with the agreement ensure that parents are given influence on the childminder's work with the children.

15.-(1) The parent board of a day-care centre shall lay down the principles for the work of the day-care centre and for applying the budget framework of the day-care centre within the objectives and framework determined by the local council.

(2). The parent board of the local-authority childminding service shall lay down the principles for the work of the childminding service and for applying the budget framework of the childminding service within the objectives and framework determined by the local council.

(3). The parent board shall perform its tasks within the objectives and frameworks determined by the local council. In independent day-care centres, the parent board shall also perform its tasks within the objective and mission statement stipulated in its by-laws; cf. section 16(2).

(4). The parent board has a right of nomination and right to participate in the appointment of the manager of local-authority and independent day-care centres and of local-authority childminding.

(5). The parent board has a right of nomination in connection with the hiring of employees for local-authority and independent day-care centres and for local-authority childminding.

16.-(1) After having obtained a statement from the parent boards, the local council shall lay down the by-laws for the management of local-authority day-care facilities.

(2). After having obtained a statement from the parent board, the board of the independent day-care centre shall prepare the by-laws for the management of the centre. The by-laws shall be approved by the local council.

(3). The local council may not leave supervision and powers to a parent board that form part of the local council's allocation and employer powers.

Parent-paid meal schemes

17.-(1) The local council may decide to allow meal schemes in day-care facilities under section 19(2) and (3) and shall lay down the overall framework of the meal scheme.

(2). The parent board of the individual day-care facility shall decide whether to start a meal scheme under subsection (1) above and how to plan such a scheme.

(3). The individual parents with children in a day-care facility shall decide

whether they want to use the meal scheme. Parents using the meal scheme shall pay its costs.

(4). The local council shall fix a maximum amount for the parents' payment of meal schemes. The local council may decide that payroll costs involved in meal schemes be included in the parents' payment.

(5). In the event that the local council decides to allow parent-paid meal schemes under subsection (1) above, private day-care centres may establish parent-paid meal schemes. The private day-care centre shall lay down its own framework for the scheme.

(6). The local council may decide to subsidise parent-paid meal schemes in day-care facilities under section 19(2)-(4) with due regard to the parent's financial situation.

Central evaluation and advisory function

18.-(1) The central evaluation and advisory function for day-care facilities under the Danish Evaluation Institute, cf. the Act on the Danish Evaluation Institute, shall be in charge of systematic collection, analysis and communication of knowledge and evaluation of the day-care facility area.

(2). Day-care facilities and local authorities may seek inspiration and guidance on evaluation and quality development from the central evaluation and advisory function.

(3). The central evaluation and advisory function may obtain the information from local authorities and day-care facilities deemed important for the work of the evaluation and advisory function.

Part 3

Establishment and operation of day-care facilities

Day-care facilities in the form of day-care centres

19.-(1) Day-care facilities may be established as day-care centres.

(2). Day-care centres may be operated by one or more local authorities as a local-authority day-care centre.

(3). Subject to agreement with the local council, day-care centres may be operated by private providers as independent day-care centres.

(4). Subject to the approval of the local council, day-care centres may be operated by private providers as private day-care centres.

20.-(1) The local council of the local authority of the day-care centre shall approve private day-care centres. A private day-care centre that observes statutory and local-council provisions for approval is entitled to approval.

(2). The local council shall determine and publish criteria for approval under subsection (1) above. The local council may require an operating guarantee.

(3). The local council may withdraw the approval of a private day-care centre if the centre fails to observe the criteria on which it was approved.

(4). The local council may charge a deposit in connection with the application for approval under subsection (1) above. The decisions of the local council pursuant to subsections (1)-(4) cannot be brought before other administrative authorities.

Day-care facilities in private homes and other premises in the children's home environment

21.-(1) Day-care facilities may be established in private homes and other premises in the children's home environment.

(2). Day-care facilities in private homes, etc. may be operated by the local authority as local authority childminding.

(3). Day-care facilities in private homes, etc. may subject to agreement with the local council be operated by a private provider as private childminding.

22.-(1) The local council shall approve private homes and other premises intended for childminding; cf. section 21.

(2). The individual childminder may care for up to five children. If childminding is handled by several people, the local council may decide that the childminder care for up to ten children.

(3). The local council may decide that the childminder's own children, who are the same age as the other children in childminding, may be included in the number of children for which the childminder receives payment.

Part 4

Admission, guaranteed day-care availability, place in another local authority and termination

Admission and guaranteed day-care availability in the local authority of residence

23.-(1) All children under school age shall be entitled to be admitted to a day-care facility.

(2). The local council shall offer parents guaranteed day-care availability in day-care facilities under section 19(2) and (3) or section 21(2) and (3).

(3). Guaranteed day care availability implies that the local council shall offer places in an age-appropriate day-care facility under section 19(2) and (3) or section 21(2) and (3) to all children older than 26 weeks and until they reach school age. If the parents want a place immediately after the 26 weeks, the local council has a further four weeks to offer a place.

(4). The local council shall lay down and publish guidelines for applications for admission to a day-care facility.

24.-(1) It is considered as breach of the guaranteed day-care availability if the local council is unable to offer a place in a day-care facility on or before the date at which the child must be offered a place in pursuance of section 23.

(2). If the local council fails to observe the guaranteed day-care availability, the local council shall, effective from the time when the place should be available,

(i) cover gross operating costs for a place in a day-care facility in another local authority; cf. section 28;

(ii) cover costs for a place in a private day-care centre, cf. section 19(4), or private childminding; cf. section 80; or

(iii) provide a subsidy for minding own children; cf. section 86.

(3). Subsidies under subsection (2)(ii) and (iii) above may not exceed the local authority's average gross operating costs per place in a day-care facility in the local authority for the relevant age group.

(4). The local council shall provide subsidies under subsection (2)(iii) above irrespective of whether the local council generally grants subsidies for minding of own children under section 86 and regardless of whether the subsidy period is shorter than the minimum period; cf. section 88(3).

(5). Subsidies to parents pursuant to subsection (2) above shall be granted until the local council can offer a place and the parents are free from paying other day-care pursuant to subsection (2) above.

25.-(1) Effective as from the first calendar day of the month following a breach of the guaranteed day-care availability, the local council shall increase the subsidy under section 31 to not less than 78 per cent for all children in local-authority day-care facilities until the council is able to meet the day-care guarantee and the local council has laid down new rates for subsidies and user-payment.

(2). If the local council fails to comply with subsection (1) above, the local council shall repay the parents the amount by which the subsidy has unjustly not been increased.

(3). In very special cases where the local council cannot offer a place within the periods stipulated, the local council may refrain from increasing the subsidy rate irrespective of subsection (1) above if the local council is able to offer a place to the child within one extra month.

26.-(1) The local council shall make a decision on admission to a day-care facility under section 19(2) and (3) or section 21(2) and (3). Such decision cannot be brought before other administrative authorities.

(2). The local council may decide that independent day-care centres and private childminders shall entirely or partially make their own decision on admission to the day-care centre.

(3). Private day-care centres shall make a decision on admission to the private day-care centre. The local council cannot offer places in private day-care centres.

27.-(1) The local council shall lay down and publish guidelines for admitting children in day-care facilities under section 19(2) and (3) and section 21(2) and (3). Parents shall be able to state their wishes for admission to specific day-care facilities.

(2). Independent day-care centres and private childminders with authority to make admission decisions, cf. section 26(2), shall lay down and publish guidelines for admitting children to such facilities.

(3). Private day-care centres shall lay down and publish guidelines for admitting children to such centres.

(4). Private day-care centres may only refuse to admit children if they do not have any places.

Place in day-care facilities in another local authority

28.-(1) All children shall have access to be admitted to a day-care facility under section 19(2) and (3) and section 21(2) and (3) in a local authority other than the local authority of residence from the time when the parents have been granted a subsidy from the local authority of residence for a day-care facility; but see subsection (2) below.

(2). The local council may decide to close the waiting list for admission of children from other local authorities due to capacity restrictions and special considerations for children from the local authority.

(3). In connection with a move to another local authority, all children are entitled to keep a place in a day-care facility under section 19(2) and (3) and section 21(2) and (2).

Termination and removal

29.-(1) The local council may not terminate the place of children admitted to a day-care facility under section 19(2) and (3) and section 21(2) and (3) without providing another similar day-care facility or another relevant facility.

(2). Private day-care centres may not terminate the place of children in a private day-care centre unless exceptional circumstances apply.

(3). The local council shall lay down and publish guidelines for parents' removal of children from day-care facilities in pursuance of section 19(2) and (3) and section 21(2) and (3).

(4). Private day-care centres shall lay down and publish guidelines for parents' removal of children from such centres.

Authorisation

30. The Minister for Family and Consumer Affairs shall lay down rules for deposit and operating guarantee, cf. section 20, guaranteed day-care availability and deadlines for offering places, subsidies in pursuance of section 24 and rules for closing the waiting list for admission of children from other local authorities.

Part 5

Subsidies for day-care facilities and parents' own payment

Subsidies for day-care facilities in the local authority of residence

31.-(1) The local council of the local authority of residence shall grant parents a subsidy per child to be used for day-care facilities under section 19(2) and (3) and section 21(2) in the local authority of residence.

(2). Subsidies in pursuance of subsection (1) above shall constitute at least 75 per cent and the parents' own payment shall not exceed 25 per cent of the budgeted gross operating costs of using day-care facilities except for any property expenses, including rent and maintenance.

(3). Subsidies and own payment shall be determined for one financial year at a time on the basis of the budgets adopted by the day-care facilities.

32. In connection with admission to a local-authority or independent day-care centre, the local council's subsidy and the parents' own payment shall be calculated on the basis of the budgeted gross operating costs of the individual day-care centre or on the basis of the average budgeted gross operating costs of similar day-care centres in the local authority.

33. In connection with admission to local-authority childminding, the local council's subsidy and the parents' own payment shall be calculated on the basis of the average gross operating costs of the local-authority childminder.

34.-(1) The local council of the local authority of residence shall grant a subsidy per child for private childminding.

(2). Subsidies for private childminding shall be determined by the local council, and the parents' own payment shall not exceed 25 per cent of the budgeted gross operating costs of the private childminder as agreed with the local council.

(3). In connection with admission to private childminding, the local council's subsidy per child and the parents' own payment shall be calculated on the basis of the budgeted gross operating costs of the individual private childminding.

35.-(1) When an independent day-care centre wants to handle the administration, the local council shall grant the independent day-care centre an administration subsidy.

(2). The administration subsidy shall correspond to the average administration subsidy per child which the local council grants to

independent day-care centres in the local authority.

Subsidies for private day-care centres

36.-(1) The local council shall provide an operating subsidy per child admitted to a private day-care centre.

(2). The operating subsidy shall correspond to the average budgeted net operating costs excluding costs for support persons, cf. section 4(2), per child in an age-appropriate day-care facility in the local authority under section 19(2) and (3) and section 21(2) and (3).

37.-(1) The local council of the local authority of residence shall grant a building subsidy per child admitted to a private day-care centre.

(2). The building subsidy shall correspond to the average building subsidy per child in the same age group in the independent day-care centres in the local authority.

38.-(1) When a private day-care centre wants to handle the administration, the local council of the local authority of residence shall grant an administration subsidy per child admitted to the private day-care centre.

(2). The administration subsidy shall correspond to the average administration subsidy per child which the local council grants to independent day-care centres in the local authority.

39. The local council of the local authority of residence shall grant the subsidies under sections 36-38 from the time when the parents have been granted a subsidy for a day-care facility and the child has been admitted to the private day-care centre and until the child starts school.

40. Private day-care centres shall fix and publish the parents' own payment.

Subsidies for day-care facilities in another local authority

41.-(1) The local council of the local authority of residence shall grant a subsidy per child admitted to a day-care facility under section 19(2) and (3) and section 21(2) and (3) in another local authority.

(2). In the event of admittance to a day-care facility in a local authority other than the local authority of residence, the subsidy of the local authority of residence is calculated to correspond to the average budgeted net operating costs per place for day-care facilities in the local authority of residence as calculated for the age group of the child.

(3). Such subsidy may not exceed the subsidy rate for the age group of the local authority of residence calculated on the basis of the budgeted gross operating costs per place in the day-care facility used in the local authority of the day-care centre as calculated in the local authority of the day-care centre; cf. section 31(2) and sections 32-34; but see sections 42-44.

(4). The local authority of residence shall pay the subsidy directly to the local authority of the day-care centre.

(5). The parents shall pay the difference between the subsidy from the local authority of residence and the gross operating cost per place in the day-care facility used as calculated in the local authority of the day-care centre; cf. section 31(2) and sections 32-34.

42.-(1) When parents choose a day-care facility in a local authority other than the local authority of residence, the local council of the local authority of residence may decide to grant an extra subsidy to the local authority of the day-care centre to reduce the costs of the local authority of the day-care centre, reduce the parents' own payment or both.

(2). The local authority of residence shall pay the extra subsidy directly to the local authority of the day-care centre.

Sibling discount and aided place subsidy

43. The local council shall grant a

(i) sibling discount to parents with more than one child in a day-care facility, after-school centre, school-based leisure-time facility or private day-care eligible for subsidies in pursuance of section 80;

(ii) financially aided place subsidy taking into account the parents' financial situation;

(iii) treatment aided place subsidy when a child with considerably and permanently diminished physical or mental capacity stays in a day-care facility for treatment reasons; and

(iv) socio-pedagogic aided place subsidy when stay in a day-care facility is deemed necessary for social or pedagogical reasons and the issue of payment reduces the child's possibility of being admitted to or remaining in a day-care facility.

Authorisation

44. The Minister for Family and Consumer Affairs shall lay down rules on subsidies and own payment subject to the provisions of this part, including rules for the German minority.

Title III

After-school centre for children of school age

Part 6

Purpose, child environmental impact assessment, etc.

Purpose of after-school centres

45.-(1) Children in after-school centres shall have a physical, mental and aesthetical child environment that promotes their welfare, health,

development and learning. The pedagogic activities in after-school centres shall respect and support the child's own choice of activities while comprising educationally planned activities.

(2). After-school centres shall pay special attention to involving and activating children in need of special support.

(3). After-school centres shall promote children's linguistic, aesthetic and bodily expressions, health and knowledge of nature.

(4). After-school centres shall give children co-determination, co-responsibility and an understanding of democracy. As part of this objective, after-school centres shall contribute to developing children's independence, skills in entering into committing social relations and solidarity with and integration in the Danish society.

(5). After-school centres shall promote knowledge of and interrelation with other types of after-school facilities, including athletic associations and cultural services.

(6). After-school centres shall cooperate with the school and parents to create a coherent transition between the educational environment of the school and the after-school centre. After-school centres shall allow children to do homework.

Child environmental impact assessment

46.-(1) All after-school centres shall prepare a written child environmental impact assessment which contains a mapping of the centres' physical, mental and aesthetic child environment. The child environmental impact assessment shall describe any child environmental issues and include an action plan.

(2). The child environment shall be assessed from a child's perspective and the children's experience of the child environment shall be included according to the children's age and maturity.

(3). The manager of the after-school centre shall involve the parent board in the child environmental impact assessment work.

47.-(1) The manager of the after-school centre is responsible for preparing and publishing the child environmental impact assessment.

(2). The manager of the after-school centre is responsible for having the child environmental impact assessment revised at least every three years and whenever there are changes affecting the child environment.

(3). After-school centres may seek advice regarding child environment from the Danish Centre of Educational Environment; cf. the Act on the Educational Environment of Pupils and Students.

Parent board

48.-(1) Parents with children in a local-authority or independent after-

school centre shall be entitled to establish a parent board for the individual after-school centre consisting of a majority of elected parents; but see section 24a of the Act on Primary and Secondary Education. After-school centre employees shall be represented on the parent board. The local council may decide that employee representatives on parent boards in local-authority after-school centres shall have a right to vote.

(2). Subsection (1) above shall not apply to independent after-school centres, in which the board consists of a majority of elected parents.

(3). In respect of private after-school centres, the local council shall in connection with the agreement ensure that parents are given influence on the after-school centre's activities with the children.

49.-(1) The parent board of an after-school centre shall lay down the principles for the work of the after-school centre and for applying the budget framework of the after-school centre within the objectives and framework determined by the local council.

(2). The parent board shall perform its tasks within the objectives and framework determined by the local council. In independent after-school centres, the parent board shall also perform its tasks within the objective and mission statement stipulated in its by-laws; cf. section 50(2).

(3). The parent board has a right of nomination and right to participate in the appointment of the manager of local-authority and independent after-school centres.

(4). The parent board has a right of nomination in connection with the hiring of employees in local-authority and independent after-school centres.

50.-(1) After having obtained a statement from the parent boards, the local council shall lay down the by-laws for the management of local-authority after-school centres.

(2). After having obtained a statement from the parent board, the board of the independent after-school centre shall prepare the by-laws for the management of the centre. The by-laws shall be approved by the local council.

(3). The local council may not leave supervision and powers to a parent board that form part of the local council's allocation and employer powers.

Parent-paid meal schemes

51.-(1) The local council may decide to allow meal schemes in after-school centres pursuant to section 52(2) and (3) and shall lay down the overall framework of the meal scheme.

(2). The parent board of the individual after-school centre shall decide whether to start a meal scheme under subsection (1) above and how to plan such a scheme.

(3). The individual parents with children in an after-school centre shall

decide whether they want to use the meal scheme. Parents using the meal scheme shall pay the costs of the scheme.

(4). The local council shall determine a maximum amount for parents' payment of meal schemes. The local council may decide that payroll costs involved in meal schemes be included in the parents' payment.

(5). In the event that the local council decides to allow parent-paid meal schemes under subsection (1) above, private after-school centres may establish parent-paid meal schemes. The private after-school centre shall lay down its own framework for the scheme.

(6). The local council may decide to subsidise parent-paid meal schemes in after-school centres under section 52(2)-(4) taking into account the parent's financial situation.

Part 7

Establishment and operation of after-school centres

52.-(1) After-school centres may be established as institutions.

(2). After-school centres may be operated by one or more local authorities as a local-authority after-school centre.

(3). Subject to agreement with the local council, after-school centres may be operated by private providers as independent after-school centres.

(4). Subject to agreement with the local council, after-school centres may be operated by private providers as private after-school centres.

Part 8

Admission, place in another local authority and termination

Admission to an after-school centre in the local authority of residence

53.-(1) The local council shall determine admission to an after-school centre in pursuance of section 52(2) and (3). The decision cannot be brought before other administrative authorities.

(2). The local council may decide that independent after-school centres shall entirely or partially make a decision on admission to the after-school centre.

(3). Private after-school centres may determine admission to the private after-school centre. The local council cannot offer places in private after-school centres.

54.-(1) The local council shall determine and publish guidelines for admission of children to after-school centres in pursuance of section 52(2) and (3). Parents shall be given the opportunity to state their wishes for admission to specific after-school centres.

(2). Independent after-school centres with authority to make admission decisions, cf. section 53(2), shall lay down and publish guidelines for admitting children to the after-school centres.

(3). Private after-school centres shall lay down and publish guidelines for admitting children to such centres.

(4). Private after-school centres may only refuse to admit children if they do not have any places.

Place in after-school centres in another local authority

55.-(1) All children shall have access to be admitted to an after-school centre in pursuance of section 52(2) and (3) in a local authority other than the local authority of residence from the time when the parents have been granted a subsidy from the local authority of residence for an after-school centre; but see subsection (2) below.

(2). The local council may decide to close the waiting list for admission of children from other local authorities due to capacity restrictions and special considerations for children from the local authority.

(3). In connection with a move to another local authority, all children are entitled to keep a place in an after-school centre in pursuance of section 52(2) and (3).

(4). The Minister for Family and Consumer Affairs shall lay down rules for closing the waiting list for admission of children from other local authorities; cf. subsection (2) above.

Termination and removal

56.-(1) The local council may not terminate the place of children admitted to an after-school centre under section 52(2) and (3) without providing another similar after-school facility or another relevant facility.

(2). Private after-school centres may not terminate the place of children in a private after-school centre unless exceptional circumstances apply.

(3). The local council shall determine and publish guidelines for parents' removal of children in after-school centres in pursuance of section 52(2) and (3).

(4). Private after-school centres shall lay down and publish guidelines for parents' removal of children from such centres.

Part 9

Subsidies for after-school centres and parents' own payment

Subsidies for local-authority and independent after-school centres in the local authority of residence

57.-(1) The local council of the local authority of residence shall grant parents a subsidy per child to be used for after-school centres under section 52(2) and (3).

(2). Subsidies in pursuance of subsection (1) above shall constitute at least 70 per cent, and the parents' own payment shall not exceed 30 per cent of the budgeted gross operating costs of using after-school centres except for any property expenses, including rent and maintenance.

(3). Subsidies and own payment shall be fixed for one financial year at a time on the basis of the budgets adopted by the after-school centres.

58. In connection with admission to a local-authority or independent after-school centre, the local council's subsidy and the parents' own payment shall be calculated on the basis of the budgeted gross operating costs of the individual after-school centre or on the basis of the average budgeted gross operating costs of similar after-school centres in the local authority.

59.-(1) When an independent after-school centre wants to handle the administration, the local council shall grant the independent after-school centre an administration subsidy.

(2). The administration subsidy shall correspond to the average administration subsidy per child which the local council grants to independent after-school centres in the local authority.

Subsidies for private after-school centres

60.-(1) The local council of the local authority of residence shall for private after-school centres grant a subsidy per child admitted to a private after-school centre if the local authority of residence offers private after-school centres to the age group.

(2). Subsidies for private after-school centres shall be determined by the local council.

(3). Private after-school centres shall fix and publish the parents' own payment.

Subsidies for after-school centres in another local authority

61.-(1) The local council of the local authority of residence shall grant a subsidy per child admitted to an after-school centre under section 52(2) and (3) in another local authority if the local authority of residence offers after-school centres to the relevant age group or if in connection with a move the child's parents wish to keep a place for the child in an after-school centre in another local authority.

(2). In the event of admittance to an after-school centre in a local authority other than the local authority of residence, the subsidy of the local authority of residence is calculated to correspond to the average budgeted net operating costs per place for after-school centres in the local authority of residence as calculated for the age group of the child.

(3). Such subsidy may not exceed the subsidy rate for the age group of the local authority of residence calculated on the basis of the budgeted gross operating costs per place in the after-school centre used in the local authority of the centre as calculated in the local authority of the centre; cf. section 57(2) and section 58; but see sections 62-64.

(4). The local authority of residence shall pay the subsidy directly to the local authority of the after-school centre.

(5). The parents shall pay the difference between the subsidy from the local authority of residence and the gross operating cost per place in the after-school centre used as calculated in the local authority of the centre; cf. section 57(2) and section 58.

62.-(1) When parents choose an after-school centre in a local authority other than the local authority of residence, the local council of the local authority of residence may decide to grant an extra subsidy to the local authority of the centre to reduce the costs of the local authority of the centre, reduce the parents' own payment or both.

(2). The local authority of residence shall pay the extra subsidy directly to the local authority of the after-school centre.

Sibling discount and aided place subsidy

63. The local council shall grant a

- (i) sibling discount to parents with more than one child in a day-care facility, after-school centre, school-based leisure-time facility or private day-care with subsidies in pursuance of section 80;
- (ii) financially aided place subsidy taking into account the parents' financial situation;
- (iii) treatment aided place subsidy when a child with considerably and permanently diminished physical or mental capacity stays in an after-school centre for treatment reasons; and
- (iv) socio-pedagogic aided place subsidy when stay in an after-school centre is deemed necessary for social or pedagogical reasons and the issue of payment reduces the child's possibility of being admitted to or remaining in an after-school centre.

Authorisation

64. The Minister for Family and Consumer Affairs shall lay down rules on subsidies and own payment subject to the provisions of this part, including rules for the German minority.

Title IV

Club facilities and other socio-pedagogic after-school facilities for older children and young people

Part 10

Purpose of club facilities and other socio-pedagogic after-school facilities for older children and young people

65.-(1) Club facilities and other socio-pedagogic after-school facilities for older children and young people shall cooperate with the children and young people to create activities and social life that promote the comprehensive development, independence and understanding of democracy of the individual. As part of this objective, club facilities, etc. shall contribute to developing children's and young people's ability to entering into committing social relations.

(2). Club facilities, etc. shall form part of the local authority's general after-school services to older children and young people and shall subject to the local council's decision also be able to aim its activities at older children and young people in need of support. The activities provided in the facilities shall reflect the age and composition of the target group.

(3). Club facilities, etc. shall make older children and young people aware of other activities and cultural and after-school services, thus enabling them to plan their spare time outside the club facilities, etc.

(4). Club facilities, etc. shall support older children and young people in their future opportunities in the educational area and in the labour market.

(5). The local council shall lay down guidelines ensuring that children and young people have influence on the contents of the individual facilities. The local council may decide that the rules on parent boards, cf. sections 14-16, shall apply to certain facilities.

Part 11

Establishment and operation of club facilities and other socio-pedagogic after-school facilities for older children and young people

66.-(1) Club facilities and other socio-pedagogic after-school facilities for older children and young people may be established as centres or as other types of organisation.

(2). Club facilities, etc. may be operated by one or more local authorities as a local-authority club facility.

(3). Subject to agreement with the local council, club facilities, etc. may be operated by private providers as independent club facilities.

(4). Subject to agreement with the local council, club facilities, etc. may be operated by private providers as private club facilities.

Part 12

Admission, place in another local authority and termination

Admission to club facilities and other socio-pedagogic after-school facilities for older children and young people

67.-(1). The local council shall grant admission to a club facility and other socio-pedagogic after-school facilities for older children and young people in pursuance of section 66(2)-(4). The decision cannot be brought before other administrative authorities.

(2). The local council may decide that independent and private club facilities shall entirely or partially make a decision on admission to the club facility.

68.-(1) The local council shall determine and publish guidelines for admission of children to club facilities in pursuance of section 66(2)-(4).

(2). Independent and private club facilities with authority to make admission decisions, cf. section 67(2), shall lay down and publish guidelines for admitting children to such facilities.

Places in club facilities and other socio-pedagogic after-school facilities for older children and young people

69.-(1) All older children and young people shall have access to be admitted to a club facility or other socio-pedagogic after-school facility for older children and young people in pursuance of section 66(2)-(4) in a local authority other than the local authority of residence from the time when the parents have been granted a subsidy from the authority of residence for a club facility, etc.; but see subsection (2) below.

(2). The local council may decide to close the waiting list for admission of children from other local authorities due to capacity restrictions and special considerations for children from the local authority.

(3). In connection with a move to another local authority, all children are entitled to keep a place in a club facility in pursuance of section 66(2)-(4).

(4). The Minister for Family and Consumer Affairs shall lay down rules for closing the waiting list for admission of children and young people from other local authorities; cf. subsection (2) above.

Termination and removal

70.-(1) The local council cannot terminate the place of children and young people admitted to a club facility or other socio-pedagogic after-school facility.

(2). Subject to a specific assessment, the local council may decide to remove someone from a club facility, etc. The decision cannot be brought before other administrative authorities.

(3). The local council may decide that independent and private club facilities shall make a decision on removal from the club facility.

(4). The local council shall lay down and publish guidelines for removal of

children and young people from club facilities, etc.

(5). Independent and private club facilities with authority to make removals, cf. subsection 3 above, shall lay down and publish guidelines for removal of children and young people from such facilities.

Part 13

Subsidies for club facilities and other socio-pedagogic after-school facilities for older children and young people and parents' own payment

Subsidies for club facilities and other socio-pedagogic after-school facilities in the local authority of residence

71.-(1) The local council of the local authority of residence shall grant parents a subsidy per child to be used for club facilities and other socio-pedagogic after-school facilities under section 66(2) and (3) in the local authority of residence.

(2). Subsidies in pursuance of subsection (1) above shall constitute at least 80 per cent, and the parents' own payment shall not exceed 20 per cent of the budgeted gross operating costs of using club facilities, etc. except for any materials and food as well as property expenses, including rent and maintenance.

(3). The local council's subsidies for materials shall constitute not less than 50 per cent. The local council may decide to grant subsidies for food.

(4). Subsidies and own payment shall be determined by the local council on the basis of the budgets adopted for the club facilities.

72. In connection with admission to a local-authority or independent club facility, the local council's subsidy and the parents' own payment shall be calculated on the basis of the budgeted gross operating costs of the individual club facility or on the basis of the average budgeted gross operating costs of similar club facilities in the local authority.

73.-(1) The local council of the local authority of residence shall grant private club facilities a subsidy per child or young person admitted to the facility.

(2). Subsidies for private club facilities shall be determined by the local council and the parents' own payment shall not exceed 20 per cent of the budgeted gross operating costs of the private club facility as agreed with the local council.

(3). In connection with admission to a private club facility, the local council's subsidy per child and the parents' own payment shall be calculated on the basis of the budgeted gross operating costs of the individual scheme.

Subsidies for club facilities and other socio-pedagogic after-school facilities in another local authority

74.-(1) The local council of the local authority of residence shall grant a

subsidy per child admitted to a club facility or other socio-pedagogic after-school facility under section 66(2)-(4) in another local authority if the local authority of residence offers club facilities, etc. to the relevant age group or if in connection with a move the parents wish to keep a place for the child in a club facility, etc. in another local authority.

(2). In the event of admittance to a club facility, etc. in a local authority other than the local authority of residence, the subsidy of the local authority of residence is calculated to correspond to the average budgeted net operating costs per place, cf. 71(2), for club facilities, etc. in the local authority of residence. Moreover, the local council shall grant subsidies under section 71 (3) when club facilities, etc. in another local authority are used.

(3). Such subsidy may not exceed the subsidy rate of the local authority of residence calculated on the basis of the budgeted gross operating costs per place in the club facility used in the local authority of the facility as calculated in the local authority of the facility; cf. section 71(2), plus subsidy under section 71(3) and section 73; but see sections 75-77.

(4). The local authority of residence shall pay the subsidy directly to the local authority of the club facility.

(5). The parents shall pay the difference between the subsidy from the local authority of residence and the gross operating cost per place in the club facility used as calculated in the local authority of the facility; cf. section 71 (2) and (3) and sections 72 and 73.

75.-(1) When parents choose a club facility, etc. in a local authority other than the local authority of residence, the local council of the local authority of residence may decide to grant an extra subsidy to the local authority of the facility to reduce the costs of the local authority of the facility, reduce the parents' own payment or both.

(2). The local authority of residence shall pay the extra subsidy directly to the local authority of club facility.

Sibling discount and aided place subsidy

76.-(1) The local council shall grant a

(i) financially aided place subsidy taking into account the parents' financial situation

(ii) socio-pedagogic aided place subsidy when stay in a club facility, etc. is deemed necessary for social or pedagogical reasons and the issue of payment reduces the child's possibility of being admitted to or remaining in a club facility, etc.

(2). The local council may grant a sibling discount to parents with more than one child in a day-care facility, after-school centre, school-based leisure-time facility, club facility, etc. or private day-care with subsidies in pursuance of section 80 hereof.

Authorisation

77. The Minister for Family and Consumer Affairs shall lay down rules on subsidies and own payment subject to the provisions of this part, including rules for the German minority.

Title V

Private day-care schemes

Part 14

Establishment and operation of private day-care schemes

78.-(1) Establishment and operation of private day-care schemes operated without public funding and entirely or partially funded by parent payment are subject to the local council's approval if more than two children are accepted in the scheme.

(2). The local council shall supervise conditions in the private day-care scheme.

79.-(1) If day care takes place in a private home, permission may be granted for care of up to five children.

(2). If day care is handled by more than one person, the local council may allow admission of up to ten children.

Part 15

Subsidies for private day-care schemes

80.-(1) The local council shall allow parents with children aged 24 weeks to school age the opportunity to choose a financial subsidy for private day care instead of using a place in a day-care facility under section 19(2) and (3) or section 21(2) and (3), but see subsections (2)-(4) below.

(2). The local council may decide only to grant subsidies for private day care to parents with children in a specific part of the age group.

(3). The local council may decide to grant subsidies for private day care to parents with children below the age of 24 weeks.

(4). The local council may decide to grant subsidies for private day care to parents in combination with the child having a place in a day-care facility.

81.-(1) The local council shall approve the agreement on private day care between the parents and the private day-care scheme and supervise such scheme on a regular basis.

(2). The local council shall offer to handle the parents' administration of the scheme against a reduction in the subsidy corresponding to the local authority's costs of such administration.

(3). The local council shall lay down and publish guidelines for admission of children in day-care facilities when the subsidy for private day care lapses.

82.-(1) Subsidies for private day care may be granted from the time when, under the guidelines for admission of the local authority of residence, the child may have a place in a day-care facility under section 19(2) and (3) or section 21(2) and (3) and the agreement on private day care has been approved by the local council; but see section 80(3).

(2). The subsidy for private day care shall be paid the first time for the month in which the private day care starts; but see subsection (1) above.

(3). Such subsidy shall be paid the last time for the month in which the eligibility for the subsidy for private day care lapses.

83.-(1) The local council shall determine the subsidy for private day-care. Such subsidy shall be the same for all children in the same age group.

(2). The subsidy shall constitute at least 75 per cent of the cheapest budgeted net operating cost per place, excluding costs for any support person, cf. section 4(2), in a day-care facility for the same age group in the local authority. Such subsidy may not exceed 75 per cent of the parents' documented costs for the private day-care scheme.

84.-(1) The local council may decide that the parents cannot be granted a subsidy for private day care under section 80(1) if the local council deems it necessary that a child is admitted to a day-care facility in connection with the implementation of supportive measures in pursuance of section 52 of the Act on Social Services.

(2). Subsidies for private care under section 80 shall not be included in the calculation of services under the Act on Social Services or the Act on State Educational Grant and Loan Scheme.

(3). In special cases and subject to a specific assessment, the local council may grant subsidies for private day care at the same time as a parent receives maternity benefits or leave benefit for the same child.

85.-(1) Subject to an application, the local council may grant a further subsidy as a sibling discount to parents with more than one child in a day-care facility, after-school centre, school-based leisure-time facility or private day care.

(2). The Minister for Family and Consumer Affairs shall lay down rules on sibling discount in pursuance of subsection (1) above.

Part 16

Subsidies for minding own children

86.-(1) The local council may decide to allow parents with children aged 24 weeks to school age the opportunity to choose a financial subsidy for minding their own children instead of accepting a place in a day-care facility

under section 19(2) and (3) or section 21(2) and (3); but see subsection (2) below.

(2). The local council may decide only to grant subsidies to parents with children in a specific age group.

87.-(1) Subsidies for minding own children are conditional upon the applicant

(i) not receiving public transfer payments at the same time or having earned income;

(ii) not being covered by section 13(7) and (8), cf. section 26(5) and (8) of the Act on an Active Social Policy; and

(iii) having resided in Denmark for seven of the past eight years.

(2). The requirement for residence under subsection (1)(iii) above shall not apply to EU/EEA citizens to the extent that they are entitled to such subsidy under EU law.

88.-(1) Subsidies for minding own children may be granted from the time when the child is eligible for a place in a day-care facility in pursuance of section 19(2) and (3) or section 21(2) and (3). A maximum of three subsidies can be granted to the same household.

(2). The total subsidy per household may not exceed the maximum amount of daily cash benefits.

(3). The subsidy may be granted for one total period of not less than eight weeks and not more than one year. The local council may decide to fix a longer minimum period and shorter maximum period.

89.-(1) The local council shall determine subsidies for minding own children. Subsidies for minding own children shall be the same for all children in the same age group.

(2). The subsidy may not exceed 85 per cent of the lowest net operating cost in a day-care facility for the same age group in the local authority.

90. The local council shall inform the parents of the guidelines for admission to day-care facilities after the expiry of the subsidy period and on discontinuation of the subsidy period agreed.

91. The local council may decide that the parents cannot be granted a subsidy for minding own children under section 86 if the local council deems it necessary that a child is admitted to a day-care facility in connection with the implementation of supportive measures in pursuance of section 52 of the Act on Social Services.

Title VI

Administration, etc.

Part 17

Payment and repayment

Payment

92.-(1) The local council shall charge payment for services, etc. provided under this Act. Private day-care centres, private after-school centres and private day-care schemes, cf. sections 19(4), 52(4), 78 and 80, shall charge their own price for services offered by private day-care centres, private after-school centres and private day-care schemes under this Act.

(2). The Minister for Family and Consumer Affairs may lay down rules on payment and charging of fees for late payment of services hereunder. Under this Act, rules may be established for cancellation of a payment agreement if the debtor fails to provide a service under the agreement despite a demand to this effect.

Repayment

93.-(1) Subsidies granted by the local council under this Act shall be repaid if against better judgement the recipient has

(i) failed to provide information as stipulated in the Act on Legal Protection and Administration in Social Matters; or

(ii) received subsidies under this Act without being entitled to such subsidies.

(2). The demand for repayment under subsection (1) above shall lapse after five years of the termination of the subsidy and without it having been financially possible to enforce the demand as stipulated in section 94.

Collection

94.-(1) Any amounts due under this Act shall be enforceable by distress or by withholding of pay, etc. by the arrears collection authority pursuant to the rules on collection of personal taxes set out in the Tax at Source Act.

(2). For amounts due under this Act, the local council shall subrogate to the rights to payment of tax refund and work contributions plus refunds and interest, cf. section 62 of the Tax at Source Act, and the right to repayment, cf. section 55 of the Tax at Source Act. The above shall apply regardless of whether an agreement has been made for payment of the amount due.

(3). The arrears collection authority may waive amounts due under this Act and pursuant to the provisions of the Collection Act.

(4). Subsections (1)-(3) above shall not apply to outstanding amounts owed to private day-care centres, private after-school centres and private day-care schemes; cf. sections 19(4), 52(4), 78 and 80.

Part 18

Discontinuation of payment of subsidies in special cases

95.-(1) Payment of subsidies under section 86 hereof shall discontinue for a parent who intentionally avoids prosecution in Denmark in cases where

- (i) the person in question is in custody;
- (ii) the police are searching for the person in question with a view to taking the person into custody; or
- (iii) an order for custody has been issued.

(2). Payment of subsidies pursuant to section 86 shall also discontinue for a parent who intentionally avoids enforcement of a sentence in Denmark if the person in question has been given a custodial sentence or is subject other criminal law measures entailing or sanctioning imprisonment.

(3). Discontinuation of payment of subsidies paid in arrears, cf. subsections (1) and (2) above, shall be effective from the time when the parent avoided prosecution or enforcement of a sentence. Discontinuation of payment of prepaid subsidy, cf. subsections (1) and (2) above, shall be effective for the month following the month in which the parent in question avoided prosecution or enforcement of a sentence.

(4). In the event that prosecution, cf. subsection (1) above, does not result in a judgment, the part of the subsidy not paid while the parent avoided prosecution shall be payable. Subsidies shall not be payable to the deceased's estate if a parent dies before a ruling has been made.

96. The police or Prison and Probation Service shall inform the local council of the avoidance when such authority assumes that a person who intentionally avoids prosecution, cf. section 95(1), or judgment, cf. section 95(2), in Denmark also receives subsidies covered by section 86.

Part 19

Complaints

97. Decisions made by the local council under this Act may, unless otherwise stipulated in this Act or the Act on Legal Protection and Administration in Social Matters, be brought before the social complaints board pursuant to the provisions stipulated in Part 10 of the Act on Legal Protection and Administration in Social Matters.

Part 20

Financing

98.-(1) The local council shall pay costs for any supervision and administration payable by the local council under this Act.

(2). The local council shall pay costs under this Act unless otherwise stipulated in the provisions hereof.

99.-(1) Pursuant to the provisions of subsection (2) below the Government shall pay the costs for an alien holding a residence permit pursuant to

(i) section 7 or 8 of the Aliens Act;

(ii) section 9b of the Aliens Act;

(iii) section 9c(1) of the Aliens Act in immediate continuation of a residence permit under section 9b of the Aliens Act;

(iv) section 9(1)(i) or (ii) of the Aliens Act as a consequence of ties to a person with residence in Denmark if this person has obtained a residence permit pursuant to the provisions specified in paras. (i)-(iii) above or when the tie can be made to such a person;

(v) section 9c(1) of the Aliens Act when permission has been granted to a person over the age of 18, whose father or mother has been granted a residence permit under one of the provisions specified in para. (i);

(vi) section 9c(1) of the Aliens Act when permission has been granted to a spouse or a child of a person with a residence permit as specified in paras. (ii) and (iii).

(vii) section 9c of the Aliens Act when the permit has been granted to an alien seeking asylum;

(viii) section 9c(1) of the Aliens Act when the permit has been granted as a consequence of a tie to an under-age alien seeking asylum who holds a residence permit pursuant to section 7 or 9 of the Aliens Act; or

(ix) section 9c of the Aliens Act.

(2). Notwithstanding the provisions in subsection (1) above, the Government shall pay a local authority's costs for

(i) aliens who due to considerably and permanently diminished physical or mental capacity are placed in full-time facilities within 12 months of the date of the residence permit but only until the person in question has taken care of him/herself for an uninterrupted period of two years; and

(ii) aliens when the permission has been granted to an under-age asylum seeker, but not exceeding the date when the recipient reaches the age of 18 or the child's parents are granted legal residence in Denmark.

Part 21

Experiments

100.-(1) Subject to a proposal from the local council, the Minister for Family and Consumer Affairs may approve that facilities other than those described in this Act be established during an experimental period.

(2). Subject to a proposal from the local council, the Minister for Family and Consumer Affairs may also approve schemes that deviate from the provisions of this Act during an experimental period. Experiments with facilities for children and young people deviating from the ordinary provisions on parents' own payment for services pursuant to Parts 5, 9 and 13 cannot be approved.

Part 22

Pool schemes

101.-(1) In respect of pool schemes established between 27 June 1992 and 31 December 1993 in relation to businesses situated in other local authorities, the local council shall grant a fixed subsidy per child admitted to the facility.

(2). The subsidy shall correspond to half the operating costs per place of the scheme but not more than half of the average operating costs of day-care facilities for the age group in question in the local authority. Subject to an agreement with the business, the local council may grant a higher subsidy.

(3). The provisions in Titles I, II, III and VI and section 80(4) shall apply to pool schemes under this provision.

102.-(1) In respect of pool schemes with which the local council has concluded an agreement before 1 August 2007 and which are not comprised by section 101, the local council shall grant a subsidy per child under the scheme pursuant to the agreement concluded with the pool scheme.

(2). The provisions in Titles I, II, III and VI and section 80(4) shall apply to pool schemes under this provision.

Part 23

Effective date, transitional provisions, etc.

103. This Act shall come into force on 1 August 2007.

104. During the period from the effective date hereof and until 31 March 2008, it shall be a condition for receiving subsidies for minding own children that the applicant's spouse does not receive any allowances pursuant to section 3(7) of Act no. 239 of 27 March 2006 on Amendment of the Act on Active Employment Measures and the Act on an Active Social Policy.

105. Experiments approved by the Minister for Family and Consumer Affairs pursuant to section 184 of the Act on Social Services, cf. Consolidated Act No. 58 of 18 January 2007 shall continue until the expiry of the experimental period.

106. -110. (Excluded for the purpose of this Act)

111. This Act shall not extend to the Faeroe Islands and Greenland.

Given at Christiansborg Palace on 6 June 2007

Under Our Royal Hand and Seal

Margrethe R.

/Carina Christensen